

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF MARYLAND**
at Choose an item.

In re:

_____ ,

Debtor.

Case Number: _____
Chapter 13

_____ ,

Movant,

v.

_____ ,

Respondent.

**ORDER GRANTING MOTION TO VALUE COLLATERAL
AND TO AVOID SECURITY INTEREST**

Having considered the debtor's motion to value collateral and avoid a security interest in the property described as _____ (the "Collateral"), and any response filed thereto, and it appearing that proper notice has been given, pursuant to 11 U.S.C. § 506, it is, by the United States Bankruptcy Court for the District of Maryland,

ORDERED, that the value of the Collateral is determined to be \$_____ ; and it is further

ORDERED, that the respondent holds a secured claim to the extent of the value of the Collateral and a general unsecured claim to the extent of any amount owed to the respondent in excess of the value of the Collateral; and it is further

ORDERED, that at such time as a discharge order is entered pursuant to 11 U.S.C. § 1328 or the debtor completes performance of the debtor's confirmed Chapter 13 plan in this case, the lien held in favor of the respondent on the debtor's interest in the Collateral is avoided to the extent of the respondent's unsecured claim; and it is further

ORDERED, that if the respondent has filed or timely files a proof of claim, the claim of the respondent is allowed for purposes of distributions under the debtor's plan as a secured claim in an amount not to exceed the value of the Collateral and as a general unsecured claim for the balance; and it is further

ORDERED, that allowance of the claim of the respondent pursuant to this order is without prejudice to objection to such claim on other grounds.

cc: Debtor
Debtor's Attorney
Movant
Movant's Attorney
Respondent
Respondent's Attorney
Chapter 13 Trustee
Non-Debtor Co-Owner (with address)
U.S. Trustee

END OF ORDER

**INSTRUCTIONS FOR COMPLETION OF
LOCAL BANKRUPTCY FORM L**

(These instructions should not be filed when the form is uploaded.)

NOTE: Local Bankruptcy Rule 3012-1 requires a motion to value collateral and avoid a security interest in real or personal property that is not a Chapter 13 debtor's principal residence to be filed with a proposed order conforming to this Local Bankruptcy Form L. The movant may revise the form to make the grammar appropriate for joint cases.

Proposed orders must be prepared in compliance with Local Bankruptcy Rule 9013-3.